

Sau. Shital W/O Sandeep Solanki vs Sandeep S/O Bhimraoji Solanki on 16 January, 2017

Author: Z.A. Haq

Bench: Z.A. Haq

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mca106

IN THE HIGH COURT OF JUDICATURE AT BOMBAY,

NAGPUR BENCH, NAGPUR.

MISC. CIVIL APPLICATION NO. 1067 OF 2015

Sau. Shital w/o Sandeep Solanki,
Aged about 22 years,
Occupation - Household,
R/o C/o. Kisanraoji Chavhan,
Chincholi (Digras), Tahsil-Digras,
District - Yavatmal.

.... APPLICANT

VERSUS

Sandeep s/o Bhimraoji Solanki,
Aged about 28 years,
Occupation - Private Service,
R/o Plot No.7, Punapur Road,
Near Kajal Bar, Bhawani Nagar, Pardi,
Nagpur.

.... NON-APPLICANT

Shri R.J. Shinde, Advocate for the applicant,
Shri R.K. Maheshwari, Advocate for the non-applicant.

CORAM : Z.A. HAQ, J.

DATED : 16

JANUARY, 2017.

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ORAL JUDGMENT :

Heard Shri R.J. Shinde, Advocate for the applicant and Shri R.K. Maheshwari, Advocate for the non-applicant.

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2. The applicant-wife has approached this Court under Section 24 of the Code of Civil Procedure praying that the proceedings of Petition No.A-749/2015 filed by the respondent/husband against her under Section 13(1)(i-a) of the Hindu Marriage Act, 1955 before the Family Court, Nagpur be transferred to the Court of Civil Judge, Senior Division, Darwha. In the application, it is stated that the proceedings are required to be transferred as the financial condition of wife is not such that she can afford to attend the proceedings at Nagpur. Bare statements are made in paragraph No.6 of the application about some other proceedings under Section 125 of the Code of Criminal Procedure and registration of proceedings for offence under Section 498-A read with Section 34 of the Indian Penal Code.

3. The respondent/husband has come out with the case that the proceedings under Section 125 of the Code of Criminal Procedure which were filed by wife earlier were withdrawn and then perhaps fresh proceedings under Section 125 of the Code of Criminal Procedure are filed, after the respondent/husband filed petition under Section 13(1)(i-a) of the Hindu Marriage Act, 1955.

4. I find that there are no averments from either side on oath 3 mca1067.15 about pendency of other proceedings, if any. In these circumstances, the miscellaneous civil application is dismissed with liberty to the applicant to file fresh proper application, if so advised. In the circumstances, the parties to bear their own costs.

JUDGE adgokar